

District-Joypurhat.

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION,
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Md. Toufiq Inam

Civil Revision No. 4295 of 2014.

And

Civil Revision No. 4296 of 2014.

Md. Sultan Mahmud Fakir.

.....Pre-emptee-Respondent-Petitioner.

-Versus-

Alhaj Md. Mokhleesar Rahman Mollah and others.

..... Pre-emptor-Appellant-Opposite Party.

Mr. Abdus Salam Mondol, Advocate with

Mr. Abul Kalam Azad, Advocate.

..... For the Pre-emptee-Respondent-Petitioner.

Mr. M. A. Azim Khair, Senior Advocate, with

Mr. Md. Iqbal Hossain, Advocate and

Mr. Md. Sultanuzzaman (Sumon), Advocate

.....For the Pre-emptor-Appellant-Opposite Party Nos.1-10.

Heard On: 03.07.2025.

And

Date of Judgment: 10th Day of July 2025.

Md. Toufiq Inam, J.

These revisional applications are directed against the appellate judgment and order dated 29.10.2014 passed in Miscellaneous Appeals Nos. 14 of 2012 and 15 of 2012 by the learned Joint District Judge, Second Court, Joypurhat reversing the judgment and order dated 02.08.2012 passed by the learned Senior Assistant Judge, Khetlal Court, Joypurhat in Miscellaneous Cases Nos. 17 of 2002 and 18 of 2002 dismissing Miscellaneous Cases of pre-emption filed under section 96 of the State Acquisition and Tenancy Act (“the SAT Act”).

The brief facts of the case are that the original pre-emptor, Alhaj Karmotulla Molla (now deceased), filed two Miscellaneous Cases seeking pre-emption of 0.69 acres of land described in MRR Khatian No. 16. The land originally belonged to one Tafij Uddin Chowdhury, who transferred it to his son Obaidur Rahman Chowdhury by a Heba-Bil-Ewaj Deed No. 5902 dated 26.07.1972. Obaidur Rahman subsequently transferred the same land to Pre-emptee-Seller by another Heba-Bil-Ewaj Deed No.1680 dated 31.03.1988. On 30.10.2002, pre-emptee-seller sold the land to pre-emptee-purchaser by two registered sale deeds, being Nos. 4967 and 4968.

The pre-emptor claimed that he was a contiguous landowner and that the said sale was made secretly by the pre-emptee-seller to the pre-emptee-purchaser without serving the statutory notice under Section 89 of the SAT Act. He came to know of the sale through local gossip on 18.11.2002 and obtained certified copies of the deeds on 20.11.2002. Subsequently, two separate pre-emption cases were filed on 27.11.2002 concerning two distinct deeds. Upon the death of the original pre-emptor during the pendency of the proceedings, his heirs were duly substituted in his place.

The pre-emptee-purchaser contested the pre-emption cases, raising objections on several grounds including limitation, defect of parties, and *waiver*, *acquiescence*, and *estoppel*. They alleged that the pre-emptor had knowledge of the sale beforehand, had consented to it in the presence of his relative Motahar Ali, and had waived his right by not objecting at the time. They also contended that the pre-emptor owned over 60 bighas of land and had no real need for the case land.

The learned trial Judge, after framing issues and taking evidence, dismissed the pre-emption petitions primarily on the ground that the pre-emptor had waived his statutory right and was estopped from claiming pre-emption.

Feeling aggrieved, the pre-emptor preferred two separate appeals. The learned appellate court, upon hearing both sides, allowed the appeals and thereby allowed the pre-emption upon setting aside the trial court's decision. The appellate court found that the trial court had misapplied the law on waiver, acquiescence and *estoppel* and failed to appreciate the evidentiary standard correctly.

Being aggrieved by the appellate court's judgment, the pre-emptee-purchaser, as petitioner, challenged the said judgments and orders by filing two separate revisional applications, Civil Revision Nos. 4295 of 2014 and 4296 of 2014, under Section 115(1) of the Code of Civil Procedure, and accordingly obtained the present Rules. Both Rules are taken up together for hearing and are being disposed of by this single judgment.

Mr. Abdus Salam Mondol, appearing with Mr. Abul Kalam Azad, the learned Counsels for the pre-emptee-petitioner, raises a new legal point in these revisions. He submits that the pre-emptor had failed to use the specific term "*I am the contiguous landowner*" in the petitions, and such omission rendered the pleading defective. Relying on *Ahmed Hossain vs. Basharat Ali*, reported in 32 DLR (AD) 55, he argued that the requirement of "contiguity" must be explicitly pleaded and strictly construed to mean physically adjoining land. Therefore, the learned Counsel contends that proof beyond pleadings is legally inadequate and any deficiency in the pleadings cannot be cured by evidence alone.

However, the learned Counsel candidly admits that there is no defect of parties and that the petitions are not barred by limitation. Nevertheless, he submits that the pre-emptee-petitioner, by adducing cogent oral evidence, have successfully proved that the pre-emptor had *waived* his statutory right by expressly refusing to purchase the case land when the offer was made to him. He contends that such

conduct amounts to a clear waiver, and that the pre-emptor, having once declined to purchase the land, cannot now turn around and seek to pre-empt the same transaction.

It is further argued that the trial Court rightly appreciated the evidentiary materials and came to the conclusion that a complete case of *waiver*, *acquiescence*, and *estoppel* was made out against the pre-emptor. On that basis, the learned trial Judge dismissed the pre-emption petitions, finding that the pre-emptor's conduct disentitled him from claiming the statutory relief under Section 96 of the SAT Act.

In reply, Mr. M. A. Azim Khair, the learned Senior Advocate appearing on behalf of the pre-emptor-opposite party, draws the Court's attention to paragraph 1 of the original pre-emption petitions/plaints wherein it has been unequivocally asserted that the pre-emptor owns contiguous land touching on three sides of the plot sought to be pre-empted. He submits that this foundational fact was not only specifically pleaded but also amply proved through both oral and documentary evidence, satisfying the required legal standard.

He further asserts that the learned lawyer for the pre-emptee, during hearing of the appeals, clearly admitted that "*the original petitioner and later on his heirs are the contiguous land-holder to the case land*", a fact which is duly reflected in paragraph 8(c) of the judgment of the Appellate Court.

Next, Mr. Khair submits that any conduct or refusal by the pre-emptor before the sale was legally irrelevant, since the right of pre-emption only arises upon registration of the sale deed. He relied on the judgment in *Dewan Ali vs. Jashimuddin*, reported in 60 DLR (AD) 73, which held that right of pre-emption accrues on the date of

registration of the sale deed. Any such right before sale is an inchoate and immature right. Hence no conduct of the Pre-emptor before sale can constitute waiver, acquiescence or estoppel. This view was taken reaffirming the view expressed in *Fazaruddin vs. Maijuddin*, 44 DLR (AD) 62, where it was held that the right of pre-emption arises upon transfer of land and cannot be defeated by mere verbal assurances, unless facts clearly establish acquiescence or waiver. Acquiescence implies inaction despite knowledge of one's right, leading others to reasonably infer its abandonment. Waiver denotes a voluntary relinquishment of a known right.

Mr. Khair argues that the view expressed by the apex court in 60 DLR(AD) 73 and 44DLR(AD)62 underscore that waiver or estoppel must be based on clear and unequivocal conduct after the statutory right accrues. Any conduct prior to sale, however suggestive, is premature and legally ineffective to extinguish the pre-emptive right.

Having heard the learned counsels for both sides and upon perusal of the judgments and orders of the courts below, as well as the evidence on record, this Court proceeds to render its decision.

It appears that the Pre-emptor has sufficiently established his claim as a contiguous landowner. The Court's attention is drawn to paragraph 1 of the original petitions/plaints, wherein it has been unequivocally asserted that the pre-emptor owns land touching on three sides of the plot sought to be pre-empted. This assertion was not merely a pleading but was substantiated by both oral and documentary evidence, thereby satisfying the legal requirement for establishing contiguity. Furthermore, the pre-emptee's lawyer clearly admitted this fact during the appellate proceedings, which is duly reflected in the judgment of the Appellate Court. Therefore, the objection raised on the ground that the specific phrase "I am a contiguous landowner" was not used in the pleading is nothing but a hyper-technical

contention, devoid of substantive merit. The cumulative effect of the pleadings, evidentiary support, and the pre-emptee's own admission conclusively affirms the pre-emptor's entitlement under the law.

Now, turning to the question of acquiescence and waiver, it is settled law that the right of pre-emption accrues only after the sale is completed, specifically upon the registration of the sale deed. In *Fazaruddin vs. Maijuddin*, reported in 44 DLR (AD) 62, the Appellate Division held that the statutory right of pre-emption cannot be defeated by mere verbal assurance unless other facts and circumstances clearly establish a case of acquiescence or waiver. This principle aligns squarely with the statutory scheme of Section 96 of the SAT Act, which recognizes the right to pre-empt only after a valid transfer, that is, upon the registration of the sale deed.

The courts have consistently preferred the reasoning in *Fazaruddin*, especially as reaffirmed in *Dewan Ali vs. Jashimuddin*, 60 DLR (AD) 73, as it preserves the sanctity of statutory rights and guards against extinguishment based on premature, speculative, or informal assurances. The Apex Court has defined acquiescence and waiver with precision, requiring clear and unequivocal conduct occurring only after the right has accrued. Consequently, the Court in *Fazaruddin* emphasized that substantive rights under the law should not be extinguished lightly or without meeting this high threshold.

Thus, under Section 96 of the SAT Act, the statutory right of pre-emption arises only upon the completion of a sale through registration of the deed. Any conduct by the pre-emptor prior to the accrual of this right is legally irrelevant for the purposes of *waiver, acquiescence, or estoppel*. Such waiver or acquiescence must be established through clear and unequivocal conduct occurring only after the right has come into existence.

This Court is of the considered view that the right of pre-emption under Section 96 of the SAT Act accrues only after the sale has been completed and duly registered, and not before. In accordance with well-settled legal principles, the pre-emptor is entitled to file a petition within four months from the date of registration of the sale deed or from the date of knowledge of the sale, whichever is later, depending on whether statutory notice under Section 89 has been served.

A mere written or verbal notice by the seller regarding a prospective sale, prior to registration, does not constitute statutory notice under Section 89 and cannot trigger the accrual of the right to pre-empt. As held in *Fazaruddin* and reaffirmed by the Appellate Division in *Dewan Ali vs. Jashimuddin*, 60 DLR (AD) 73, the right of pre-emption is a substantive statutory right that cannot be extinguished based on premature or informal assurances given before the right legally accrues. Acquiescence or waiver must be based on clear, unequivocal conduct after the right has come into existence.

Accordingly, while conduct such as a written refusal to pre-empt, active facilitation of the sale, or prolonged silence following knowledge of the registered deed may support a finding of waiver or acquiescence, such conduct must occur after the statutory right has accrued. Conduct or statements made before registration of the sale are legally irrelevant for the purpose of estoppel, waiver, or acquiescence.

In the present case, the evidence relied upon by the trial court consisted primarily of the oral testimony of the pre-emptee's witnesses, particularly one Shahadat, who claimed that the pre-emptor had declined to purchase the land. However, during cross-examination, Shahadat was found to be evasive and lacking credibility, failing even to provide basic information such as his date

of birth or the nature of his connection to the parties. The trial court erred in relying on such untrustworthy testimony to infer waiver.

Furthermore, the record is devoid of any cogent evidence to suggest that the pre-emptor mediated the transaction, determined the sale price, or otherwise played a facilitating role in the sale, elements critical to a finding of *waiver* or *estoppel*. On the contrary, the materials on record demonstrate that the pre-emptor acted promptly and decisively upon learning of the sale, thereby asserting his statutory right without undue delay.

The right of pre-emption, being a substantive statutory right, cannot be defeated by vague or uncorroborated assertions of waiver. To constitute a valid waiver, there must be a clear, unequivocal, and informed relinquishment of a known legal right after its accrual. Any conduct or communication prior to the registration of the sale deed is premature and incapable of constituting legal waiver under the established principles of law.

In light of these findings, it is evident that the trial court misdirected itself both factually and legally in dismissing the pre-emption claims. The appellate court, therefore, rightly reversed that erroneous decision and allowed the appeals upon a proper assessment of the evidence and correct application of settled legal principles.

In view of the above, this Court finds no merit in the Rules.

In the result, **the Rules are discharged.**

Accordingly, the judgment and order dated 29.10.2014 passed in Miscellaneous Appeals Nos. 14 of 2012 and 15 of 2012 by the learned Joint District Judge, Second Court, Joypurhat, is hereby affirmed.

There will be no order as to costs.

Let the Lower Court Records be transmitted back along with a copy of this judgment forthwith.

(Justice Md. Toufiq Inam)

Ashraf /ABO.